

Calendar Line # 6
Case Name Rosette Simon et al vs EAH Housing Inc. et al
Case No. 26CV484388
Demurrer
<u>I. BACKGROUND</u> On July 8, 2026, Defendant EAH Housing Inc. (“EAH”), filed a demurrer to Plaintiffs Rosette Simon and Shaquille Ceesay’s First Amended Complaint (“FAC”). The demurrer was accompanied by a proof of electronic mail and mail service upon the plaintiffs on July 8, 2026. The motion is unopposed. Per Code of Civil Procedure section 1005(b) opposition papers were due on July 24, 2026. A failure to oppose a motion may be deemed a consent to the granting of the motion. (California Rule of Court Rule 8.54(c)). Failure to oppose a motion leads to the presumption that the defendant has no meritorious arguments. (<i>Laguna Auto Body v. Farmers Ins. Exchange</i> (1991) 231 Cal.App.3d 481, 489). <u>II. LEGAL STANDARD</u> Pursuant to Code of Civil Procedure section 430.10, a party may demur to a complaint on the grounds that it “does not state facts sufficient to constitute a cause of action.” (Code Civ. Proc., § 430.10, subd. (e)). A demurrer tests whether the complaint states a cause of action. (<i>Hahn v. Mirda</i> (2007) 147 Cal.App.4th 740, 747 (<i>Hahn</i>)). When considering demurrers, courts accept all well pleaded facts as true. (<i>Fox v. JAMDAT Mobile, Inc.</i> (2010) 185 Cal.App.4th 1068, 1078). In ruling on a demurrer, the Court treats it “as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law.” (<i>Piccinini v. Cal. Emergency Management Agency</i> (2014) 226 Cal.App.4th 685, 688, citing <i>Blank v. Kirwan</i> (1985) 39 Cal.3d 311, 318 (<i>Blank</i>)). <u>III. ANALYSIS</u> Here, Defendant EAH avers that the FAC as currently drafted, does not state facts sufficient to allege causes of actions against EAH. Defense has attempted to meet-and-confer with the plaintiffs regarding a possible amended complaint. Per defense the plaintiffs have refused to amend the FACT. (Declaration of Sera ¶¶ 4-6, Exhibit B). THE FAC filed on May 8, 2026 is handwritten and alleges negligence against the defendant pertaining to claims, including, but not limited to a breach of implied warranty of habitability, harassment and retaliation, failure to return rental deposit, and seeks \$15,00,000.00 in damages. Applying section 431.10, the Court considers that all material facts are properly pleaded, but not contentions, deductions, or conclusion of the law. The motion is unopposed. Per Code of Civil Procedure section 1005(b) opposition papers were due on July 24, 2026. A failure to oppose a motion may be deemed a consent to the granting of the motion. (California Rule of Court Rule 8.54(c)). Failure to oppose a motion leads to the presumption that the defendant has no meritorious arguments. (<i>Laguna Auto Body v. Farmers Ins. Exchange</i> (1991) 231 Cal.App.3d 481, 489). <u>IV. CONCLUSION</u> Based on the foregoing, the unopposed demurrer the Court SUSTAINS Defendant EAH’s demurrer with twenty (20) day leave to amend from the date of this hearing. The Court will prepare the formal Order.

//
//
//

Calendar Line # 7
Case Name Keith Lyle vs Ford Motor Company et al
Case No. 24CV449313
Motion for Summary Judgment/Adjudication Before the court is defendant Ford Motor Company’s motion for summary judgment/adjudication against plaintiff Keith Lyle. Pursuant to California Rule of Court, rule 3.1308, the court issues its tentative ruling as follows. I. <u>BACKGROUND</u> A. <u>FACTUAL BACKGROUND</u> Plaintiff Keith Lyle (“Lyle”) filed a Complaint on October 11, 2024, against defendants Ford Motor Company (“Ford”) and Heritage Ford Inc., seeking claims under the Song-Beverly Consumer Warranty Act (Civ. Code, § 1790, et seq; the “Act”). According to the Complaint, Plaintiff purchased a 2016 Ford Fusion, vehicle identification number: 3FA6P0SU7GR173049 under warranty (the “Subject Vehicle”). (Complaint, ¶¶ 10-11). Before Plaintiff purchased the vehicle, Ford knew that vehicles had engine defects, electrical defects, hybrid battery defects, among other defects and non-conformities. (<i>Id.</i> at ¶ 15). Plaintiff alleges the following six causes of action against Ford: (1) violation of Civil Code section 1793.2, subdivision (d); (2) violation of Civil Code section 1793.2, subdivision (b); (3) violation of Civil Code section 1793.2, subdivision (a)(3); (4) breach of the implied warranty of merchantability; (5) negligent repair; and (6) fraudulent inducement – concealment. Ford filed the instant motion for motion for summary judgment (“MSJ”)/adjudication (“MSA”) to causes of actions one through four, and six on March 23, 2026 that was accompanied by a proof of service indicating electronic mail service to the plaintiff’s counsel. B. <u>RELEVANT PROCEDURAL BACKGROUND</u> On March 23, 2026, defendant Ford Motor Company filed this Motion for Summary Judgment to the Plaintiff’s Complaint, or, alternatively, Motion for Summary Adjudication (“MSA”) as to plaintiff’s causes of action nos. one through four as the claims are time-barred and the sixth cause of action for fraudulent inducement-concealment as time barred. (Defendant’s motion, p. 2). The motion was accompanied by proof of electronic service on plaintiff’s counsel on that same day. Defendant received a hearing date of November 19, 2026, which was after the July 13, 2026 trial date originally set in this matter. On March 25, 2026, Defendant filed an ex parte application seeking to advance the hearing to Friday June 12, 2026, with a proof of service dated March 24. The Court granted the motion to advance the hearing and continued the trial to January 4, 2027. However, June 12 is a non-motion and calendar day and the Court is unable to hear cases, and the matter was moved to the closest motion date of June 11. Plaintiff’s counsel was served with the defendant’s ex parte application and notice of non-opposition on May 29. Given this posture, although the motion was unopposed, the court continued the motion to August 6, 2026 to allow for proper notice. On June 11, 2026, Defendant electronically served the plaintiff with an amend notice of the August 6, 2026 hearing date. The minute Order from June 11, 2026 also reflects that plaintiff’s counsel was present. The Court has carefully reviewed the Defendant’s notice of motion (totaling 4 pages); memorandum of points of points and authorities (totaling 22 pages); Separate Statement (totaling 42 page); Declaration of Katherine P. Vilchez and Exhibits A-I in support of the defendant’s motion for summary adjudication (totaling 120 pages); Declaration of Erich Kemnitz and attached Exhibits A-B in support of the defendant’s motion (totaling 5 pages); ex parte application to advance the MSA date; Amended Notice for MSA (totaling 3 pages); Notice of Non-opposition to the MSJ (totaling 4 pages); Amended Notice of the August 6, 2026 hearing date (totaling 4 pages); proof of services; and the pleadings.